CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
December 9, 2009
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:00 p.m. on Wednesday, December 9, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Rose Tydus, Commissioner Timothy Holmes and Mayor Joseph L. Kelly. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks, and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

Request to amend the commission agenda to include the following resolutions under agenda item 12 (new items):

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE BID FROM INTERNATIONAL SALVAGE, INC. IN RESPONSE TO INVITATION FOR BID (IFB # 09-1123) FOR DEMOLITION OF THE OLD TREATMENT WATER FACILITY; FURTHER AUTHORIZING THE CITY MANAGER TO NEGOTIATE AN AGREEMENT WITH INTERNATIONAL SALVAGE, INC. FOR SERVICES CONSISTENT WITH THE IFB IN AN AMOUNT NOT TO EXCEED ONE HUNDRED FIFTY THOUSAND DOLLARS ($150,000.00);

IN A FORM ACCEPTABLE TO THE CITY ATTORNEY AND TO BE APPROVED BY THE CITY COMMISSION. *Sponsored by C.M.*

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to amend the agenda to include item 12-1.

There being no discussion, the motion passed by a 4-1 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	No
Commissioner Tydus	Yes
Mayor Kelley	Yes

12-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO COMMENCE WORK TO BE PERFORMED BY THE CITY'S PUBLIC WORKS DEPARTMENT AND EXPEND FUNDS IN AN AMOUNT NOT TO EXCEED TWO HUNDRED THOUSAND DOLLARS ($200,000.00) FOR DRAINAGE AND PARKING LOT IMPROVEMENTS AT SEGAL PARK; PAYABLE FROM ACCOUNT NO. 72-572630. *Sponsored by C.M.*

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to amend the agenda to include item 12-2.

There being no discussion, the motion passed by a 4-1 vote.

Commissioner Holmes	Yes
Commissioner Johnson	No
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Manager Finnie tabled agenda items 14-1 and 15-9. Commissioner Johnson pulled agenda items 15-2, 15-3, 15-8, 15-11 and 15-12 and Commissioner Tydus pulled agenda item 15-1 from the Consent Agenda (items pulled from the consent agenda would be discussed separately under agenda item 11 – Action Items).

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

Commissioner Holmes presented a commendation to Christina Gordon, Sha'mecca Lawson, Joanna Flores, Shawn Williams, Nelson Rodriguez and Bernie Larralde for their hard work and dedication during the Annual Turkey Giveaway held in November 2009.

Georgina S. Rodriguez, Financial & Budget Director, Town of Pembroke Park / representative of the Government Finance Officers Association came forward and presented a Certificate of Achievement for Excellence in Financial Reporting to the City of Opa-locka.

8. APPROVAL OF MINUTES:

Rescheduled Regular Commission Meeting – November 12, 2009
Special Commission Meeting – November 24, 2009

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the Rescheduled Regular Commission Meeting of November 12, 2009 and the Special Commission Meeting of November 24, 2009.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner, Assistant to District 1 County Commissioner Barbara Jordan came forward for any concerns the City Commission may have had for Commissioner Jordan.

Mark Benitez of Miami-Dade County Fire Department came forward to listen to any concerns the City Commission may have had relating to the fire department.

Commissioner Johnson thanked Miami-Dade County Fire Department for their contribution towards the Holiday in the Park Celebration on December 12, 2009.

Commissioner Holmes directed the City Clerk to include Miami-Dade County Fire Department on the agenda.

10. PUBLIC PRESENTATION:

10a. CITIZENS' FORUM:

1. Beverly Washington of 540 NW 179th Terrace, Miami Gardens, Florida, appeared before the City Commission with an invitation to the Special Needs Toy Run on Sunday, December 13, 2009 from 8:00 a.m. – 10:00 a.m.

2. Mayor Michael Pizzi, Town of Miami Lakes came forward and stated that as neighboring cities they must stick together and work together collectively for the common good. He said he would hope that down the road the City of Opa-locka and the Town of Miami Lakes can do some joint projects regarding education and parks.

3. Mark Pidal of the Junior Orange Bowl Committee located at 1390 South Dixie Highway, Suite 2202, Coral Gables, Florida came forward and invited the "great" City of Opa-locka to participate in the annual Junior Orange Bowl Parade on Saturday, January 2, 2010 at 6:00 p.m.

4. Steven Barrett, 613 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and congratulated Mayor Kelley on his appointment to the South Florida Regional Planning Council. He continued by thanking Commissioner Holmes, Commissioner Johnson and Mayor Kelley for giving Roadrunner the opportunity to perform lawn services in the community.

He further commended Commissioner Holmes for the annual turkey give away.

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NOTE: *The following individuals appeared before the City Commission and spoke on the Parks & Recreation Department, its director, employees and/or recreational activities.*

5. Alvin Burke, 540 Sharar Avenue, Opa-locka, Florida
6. Pat Williams, 1820 Rutland Street, Opa-locka, Florida
7. Angelina Roberts, 2260 Service Road, Opa-locka, Florida
8. Jane Reynolds, long time citizen of Opa-locka, Florida
9. Tijuan Allen, 1205 Sharar Avenue, Opa-locka, Florida
10. Bob Mayes of the West Dade Seminoles and Miami Gardens Chargers
11. Tyrani Mitchell, 14170 NW 22 Place, Opa-locka, Florida
12. Yolanda De La Rosa, 1360 Sharazad Boulevard, Opa-locka, Florida
13. Judith Perez, 565 Perviz Avenue, Opa-locka, Florida
14. Aida, 311 Aladdin Avenue, Opa-locka, Florida
15. Tina Bishop, 1860 Rutland Street, Opa-locka, Florida
16. Linda Watson, 1310 Peri Street, Opa-locka, Florida

17. Lorraine Clark, 1211 Peri Street, Opa-locka, Florida
18. Pat Wimberly, Opa-locka, Florida
19. Resident of the 22nd Avenue Apartments
20. Resident of the Garden Apartments
21. (inaudible), NW 22nd Avenue and NW 135th Street, Opa-locka, Florida
22. Michelle Taylor, 2370 Rutland Street, Opa-locka, Florida
23. Arneisha, 2170 Rutland Street, Opa-locka, Florida

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24. Mrs. Jones of 1820 Ali-baba Avenue, Opa-locka, Florida came forward and expressed her concerns regarding the lack of information to those residents in the Triangle area. Additionally, she inquired about the bus route by Miami-Dade Transit to see about extending that route down Ali-baba Avenue east of NW 22nd Avenue.

Mayor Kelley stated that Miami-Dade Transit is cutting back on routes but the city can certainly make that inquiry to see what's happening with that route.

Commissioner Johnson said that over a year ago the City Commission passed legislation for a commute bus for transportation and she would like to see the City Manager move forth with that so that it can be an extension of what Miami-Dade County Transit already has in place. She highly suggested to the City Manager that the city utilize Code Red for announcement of all city related activities.

She further commended the Opa-locka Police Department for doing a good job.

Manager Finnie directed the Chief of Police to provide Mrs. Jones with information on the CET program in place.

25. Arthanial Mohammed of 1820 Ali-baba Avenue, Opa-locka, Florida appeared before the City Commission and spoke about Miami-Dade County Transit bus route 42 which he would like to extend that bus route a couple blocks east of NW 22nd Avenue on Ali-baba Avenue as oppose to making that turn on NW 22nd Avenue. He also spoke about the lack of information in the Triangle area relating to city activities and events.

Mayor Kelley directed the City Manager to respond to the citizens concerns under the City Manager's Report.

11. ACTION ITEMS (items from consent agenda pull list):

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TERMINATING THE APPOINTMENT OF THE CITY ATTORNEY BURNADETTE NORRIS-WEEKS, P.A. *Sponsored by T.H.*

In light of the City Attorney's resignation submitted to the City Commission, Commissioner Holmes deleted the above resolution from the agenda.

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN AN AMOUNT NOT TO EXCEED FIVE THOUSAND DOLLARS ($5,000.00) FOR A CIVIL RIGHTS SUPPER TO BE HELD ON JANUARY 16, 2010, PAYABLE FROM ACCOUNT NO. 79-579403. *Sponsored by M.T.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Being in support of the Civil Right Supper, Commissioner Johnson expressed her concern relating to residual funds going to private institutions. After hearing the citizens concerns, the city is in need of additional funds in the Parks & Recreation Department; therefore, she is not in support of funds going to a private institution. Should there be additional monies, it should be going towards the seniors and youth programs within the city.

She continued by saying that a document was placed under her door which addresses one of her colleagues and other parties. She said she would be supportive if the resolution is modified to include the city's Parks & Recreation Department which includes the seniors; if not, then her motion on the above resolution is withdrawn.

In the very past, Vice Mayor Taylor stated that the purpose of the Civil Rights Supper has not changed and it has always been to support education in the City of Opa-locka. The Parks & Recreation, the seniors program all have line item inside of the budget and have been taken care of but the educational institution in this city has not been addressed. Perhaps on the after school level but in the educational level that schools run everyday has never been addressed and that's why this grant has been given. She said this was never a problem before because what the city was doing with this was supporting education. Education has not been addressed in this city and she has found a large percentage of our children do not finish high school and the Commission must address education in this city. The purpose of this item has never changed and if anyone noticed in the body of the resolution that any money raised is going into schools that are within the city limits.

Commissioner Johnson said she didn't know anything about a grant and if the city is accepting a grant then she would hope the City Manager is bringing it before the City Commission to accept the money from the grant. The package doesn't reflect everything Vice Mayor Taylor has mentioned. As a champion for the educational compact, a joint venture between the City of Miami Gardens and the City of Opa-locka, this was already approved by the Commission in 2006. Since 2006, she is diligently working with the City of Miami Gardens and Tee Holloway to get it into a model to be presented to the school board. The resolution only addresses all private institutions and she doesn't see Charter schools as being private.

She directed the City Attorney's attention to the 6th whereas in the resolution and asked that she read it into the record.

Attorney Weeks read the section as follows: "Whereas any proceeds from the event would be given to all private educational institutions within the city limits except for the educational institution associated with the sponsor of this resolution".

Commissioner Johnson expressed her concerns relating to funds going to private educational institutions and the exclusion of the public schools within the city.

Vice Mayor Taylor reiterated that this was not a new resolution. The public schools are given revenue; but private schools are not. The money is given to private institutions which are mostly daycare centers in the city excluding public schools. This venue is a way of pushing education at a daycare center level because those are the private schools that operate within the City of Opa-locka.

She continued by saying that whoever slipped the piece of paper under Commissioner Johnson's door, she doesn't know whether that individual is trying to slander her or what she is doing. The initial corporation that this particular Civil Rights Supper was incorporated under was done by A. Quinn Jones who was the registered agent to incorporate the Opa-locka Scholarship Fund. The city contributed to that fund and the schools received the scholarship. For some reason, the corporation died so she asked the present attorney to reopen the corporation and Burnadette Norris Weeks is the registered agent as A. Quinn Jones was. She asked Attorney Weeks was that correct?

Attorney Weeks agreed.

Vice Mayor Taylor asked Attorney Weeks whether they were in business together.

Attorney Weeks replied, no we are not in business together. She said she was asked by Vice Mayor Taylor about an educational cultural foundation to try to find the resolution for that and in addition, she wanted to reestablish the foundation. After conducting some research, she found out that she really couldn't find the legal authority to support Mr. Jones and the Commission establishing that. It was established as Mr. Jones as the director/officer and Jannie Beverly as the director/officer at that time. Because she had concerns about that, she went to Vice Mayor Taylor about her concerns.

She continued by saying that Vice Mayor Taylor asked her to reestablish the foundation because it was defunct by the State of Florida due to inactivity. Afterwards, she suggested to Vice Mayor that it would be more prudent to do it as a separate entity rather than through the city because she could not see the legal authority as how it could relate to a city issue or have anything to do with the city. At that point, it was then reestablished by her office and she was listed as the registered agent and that registered agent is not an owner of that corporation; it's simply for legal purposes.

Vice Mayor Taylor stated that A. Quinn Jones was the registered agent when this resolution came out five or six years ago. This resolution is not new; it is the same thing being done again, that is all.

Attorney Weeks advised that she did have both of the documents with her. She made it clear that she was not in business with any commissioner nor does she plan to be in the future.

Vice Mayor Taylor asked, does this particular corporation have board members?

Attorney Weeks replied, you are the only board member of this corporation.

Vice Mayor Taylor asked, had she asked the city for anything for this particular venue?

Attorney Weeks said that this venue has nothing to do with that corporation.

Vice Mayor Taylor stated that this particular Civil Rights Supper partners with what Mother Kelley is doing in the celebration of the Rev. Dr. Martin Luther King and any proceeds, not saying there will be any, will go to private institutions within the city limits.

She was hopeful that the Commission would support the resolution.

Commissioner Johnson said that Vice Mayor Taylor stated that there may not be any money left over but prior to that a scholarship was mentioned and she is not clear.

She further stated that if the "private schools" in the resolution is not modified then she would not support the resolution.

Vice Mayor Taylor stated that everyone has had a project in this city but her and she has supported everyone's project. This particular project she is sponsoring is not a new project. The purpose is clear; to boost education in this city. She urged the Commission to support this resolution.

Mayor Kelley expressed his challenges with the reactivation of the corporation and hearing the City Attorney state she had some concerns in doing it, but that is not for this resolution; it is a side issue. In reviewing the resolution, the Vice Mayor is correct in that it is not new in terms of having a Civil Rights Supper but he also has concerns in terms of the private education component. He said he didn't like to play on words of education as though no one is concerned about education because the entire Commission is concerned. The statistics show that there are challenges and that's why the Commission puts money into programs to assist the children which is why the educational compact is being worked on.

He continued by saying that the MLK Walk is done on the same day in the morning and anything that is done in terms of supporting the walk, he is always appreciative of enhancing the walk, but he looks at this separately where people are actually going to

decide if they're going to the walk or the supper. He said he would not be supporting the resolution because if the Commission is going to do something honoring and support of the Civil Rights legacy, it should be centered on the walk and not have a separate event. Again, it has nothing to do with education and where the proceeds may go.

Since there wasn't a modification to the resolution, Commissioner Johnson withdrew her motion.

It was moved by Vice Mayor Taylor, seconded by Commissioner Tydus to pass the above resolution.

There being no further discussion, the motion failed by a 3-2 vote.

Commissioner Holmes	No
Commissioner Johnson	No
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	No

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RESCINDING RESOLUTION 09-7967 ACCEPTING THE PROPOSAL OF CHOICE ENVIRONMENTAL SERVICES, INC. FOR THE PROVISION OF RESIDENTIAL WASTE COLLECTION SERVICES PURSUANT TO RFP NO. 09-0821. *Sponsored by D.J.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson advised the City Commission that the City Manager is bringing this item back as an ordinance; but prior to that, the Commission must rescind the previous resolution adopted for this same purpose. Secondly, when the RFP when out, it was for a period of three (3); but, the correspondence stated an additional automatic one (1) year extension which is incorrect. This resolution would rescind the previous resolution adopted and allow the City Manager to bring back this item in the proper format and language.

Vice Mayor Taylor asked, if the Commission is rescinding the resolution for Choice Environmental Services, Inc. then why did the City Manager defer the ordinance?

Manager Finnie stated that this resolution was forwarded at a previous meeting and it was determined in consultation with the City Clerk, Commissioner Johnson and the City Attorney that perhaps the best route would be an ordinance as oppose to a resolution. He asked that Commissioner Johnson allow him to defer this resolution since he deferred the ordinance and bring them back together simultaneously with the modifications.

Attorney Weeks advised the Commission that the reason this item was brought back as an ordinance was because the Charter states any contract over a year must be brought back as an ordinance. She said Commissioner Johnson's concern was in terms of the time because she wanted to see less time and therefore, she wrote an extensive memorandum which is a part of the package. One of the issues is that it would be improper to change material terms. The RFP calls for a three (3) year contract with an option to renew for one (1) year and if the Commission wants to do something different at this point then they would have to reject all proposals. The problem with rejecting all proposals is that the city has started negotiations which may have legal implications.

Manager Finnie suggested that Commissioner Johnson defer this item and allow staff to bring all three (3) items back at one time when the issue is cleared up and resolved.

Mayor Kelley asked, would the services provided to the citizens go forth while this issue is resolved and brought back to the Commission?

Manager Finnie replied, yes.

Commissioner Johnson agreed to defer the resolution and proceeded to make reference to Article I which reflects the date of November 9, 2009. Since there was an extension with the current provider, the dates in the documentation must be changed to reflect the new dates.

Manager Finnie informed Commissioner Johnson that he would make those changes.

Mayor Kelley suggested that Commissioner Johnson continue the resolution.

Commissioner Tydus stated that the City Commission has before them a concise, specific and detailed six (6) page legal opinion on this issue. In reading the conclusion itself, she sees nothing but liability and she smells a rat. She made it publicly clear that she will be personally following this particular matter very closely because what they are about and attempting to do is not right.

Commissioner Holmes withdrew his seconded and Commissioner Johnson withdrew her motion. The above resolution was continued.

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE QUOTE FROM DIRTSA CONCRETE AND PAVERS CO. AND AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN THE AMOUNT OF FIVE THOUSAND SIX HUNDRED AND SEVENTY DOLLARS AND ZERO CENTS ($5,670.00) TO DIRTSA CONCRETE & PAVERS CO. FOR THE SUPPLY AND INSTALLATION OF CONCRETE BRICK PAVERS IN THE COMMUNITY GARDEN, PAYABLE FROM ACCOUNT NO. 72-572630. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Tydus to pass the above resolution.

In reviewing the correspondence provided in the Commission packet, Commissioner Johnson stated that she noticed two (2) of the quotes were submitted in August 2009 and one (1) was submitted in October 2009. She asked, what was the reason for the gap in dates?

Judeen Johnson, P.E. of the City of Opa-locka Public Works Department came forward and stated that the city had been working on this project since August. At that time, they solicited quotes and received several that were kind of high. In an effort to get the best possible price for the city, they searched and got vendors who could provide a more competitive quote.

Commissioner Holmes asked for the location of the community garden.

Fernand Thony, P.E., Operations Manager for the City of Opa-locka Public Works Department came forward and said that the Community Garden is located on the corner of Codadad Avenue and Sharazad Boulevard.

Commissioner Holmes recalled this item coming before the Commission over a year ago in the form of a resolution for an amount of money to be spent and it failed. He expressed his concerns relating to work being done at the location in question although the Commission had not approved any monies or for any work to be done on that property.

Commissioner Tydus said she was not familiar with any resolution coming before the City Commission; the only resolution she is familiar with is endorsing the community garden. She said she was open to any resolution that the Commissioner is making reference to. She directed the City Clerk to provide the Commission with a copy of the resolution designating that particular property as a community garden by 12:00 noon on December 10, 2009. At this point, the community garden is an eyesore and the residents of this community can only benefit from the beauty of a community garden.

Commissioner Holmes said he was not arguing that the City Commission designated that property as a community garden; but when it came before them to expend $40,000.00 on that property, the motion died. Since that resolution, there hasn't been anything brought back before this Commission and all of sudden there's this resolution on the agenda all while the work had already begun.

Commissioner Johnson stated that in 2007 a resolution was presented to the Commission to expend $42,000.00 on the community garden and that resolution failed. At the end of 2007, the resolution came back with a different sponsor on it and this time it passed but the resolution didn't have an amount on it.

She directed the City Clerk to provide a copy of the resolution from 2007 to the Commission. She said she was in favor of the community garden but her concern at the time was the amount of money; however, her only concern on this resolution was with the dates.

Mayor Kelley stated that the bottom line is that the city has ¼ of a garden and they cannot leave that property as is. Since the City Manager has allowed staff to start work on the property, the Commission is in a limbo in terms of not doing anything. He said he would support the resolution because the city cannot allow that property to remain as is.

Commissioner Holmes suggested that this resolution be continued until the City Manager provides a report to the Commission on the amount already spent on that project in addition to the total cost for the project.

Before the resolution was even considered in conjunction with the resolution, Commissioner Tydus advised that there were drawings and plans submitted and the Commission adopted everything presented as supporting documentation. This resolution on the agenda is just for pavers and that doesn't include the plans or finished products that were a part of the initial resolution. The first proposal presented didn't include the city's Public Works Department and in an effort to save monies, the city's Public Works Department was included.

She reiterated that if the Commission was comfortable in having the gateway into the city looking like a third world country, she will not go on record being a part of that. This is a beautification effort and the Commission stated that they were all for beautification.

Commissioner Johnson asked for clarification in terms of the monies for this particular project being a carry over from the previous year. She made reference to another project in which she was told if the money wasn't spent then it would be lost.

She asked, is there a line item account for the Community Garden in the current year's budget?

Faye Douglas, Assistant Finance Director for the City of Opa-locka came forward and stated that in the FY 2009 budget amendments, the city included dollars for the community garden. The project was not completed in FY 2009 and the city should have provided for the remaining dollars in the FY 2010 budget which they didn't. She said that the project began prior to September 30, 2009.

Commissioner Johnson suggested that the dollars for the community garden is included in the next budget amendment process so that there's a line item for that project.

There being no further discussion, the motion passed by a 4-1 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	No

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

11. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING CBHC, LLC AS THE MOST RESPONSIVE AND RESPONSIBLE BIDDER TO CARRY OUT SHERBONDY PARK PHASE ONE CONSTRUCTION IMPROVEMENTS; FURTHER AUTHORIZING THE CITY MANAGER TO NEGOTIATE AN AGREEMENT WITH CBHC, LLC AT A COST NOT TO EXCEED THREE MILLION TWO HUNDRED TEN THOUSAND ONE HUNDRED FIFTY-ONE DOLLARS AND ZERO CENTS ($3,210,151.00), PAYABLE FROM ACCOUNT NO. 50-541802, FOR FINAL APPROVAL BY THE CITY COMMISSION. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes for discussion.

Attorney Weeks briefed the Commission on the hearing held that same day relating to a Plaintiff's Verified Motion for Temporary Injunction filed by Trans Construction, Inc. who was the lowest bid for this particular Invitation for Bid. Basically, this issue would become mute if all bids were rejected.

Manager Finnie asked, should the Commission reject all bids, would there be a possibility to fast track an RFP process?

Attorney Weeks replied, absolutely.

In terms of the challenge, Manager Finnie said that there is a technical issue.

Attorney Weeks advised that there is an issue the Commission could be concerned about in the way of a legal challenge which they may want to avoid by rejecting all bids.

Manager Finnie stated that the real question was an Invitation for Bid versus a Request for Proposals. Should the Commission reject all bids then he would be able to fast track an RFP process allowing for a 10 day period for submittals.

Attorney Weeks stated that there are legal issues the city is open for if it doesn't go out. There was a bid, a hard bid and when there's a hard bid normally you want to look at the lowest bidder if everything is equal. Here there were a number of challenges in which staff determined that some were not responsive and some were not responsible for a number of different reasons. However, there was one technical glitch that occurred which could open the city up for a legal challenge and the city may consider allowing the City Manager instead of taking it out for bid, allowing an RFP process allowing more flexibility in terms of selecting a vendor without the possibility of a legal challenge later.

She continued by saying that she believes what the City Manager suggested is a good option just to make sure there's no issue whatsoever and the city would have a clean process.

Manager Finnie recommended moving forth with rejecting all bids and authorizing an RFP process on an expedited basis to move this project forward.

Attorney Weeks presented the Commission with a draft resolution for their consideration on rejecting all bids.

Commissioner Holmes withdrew his second and Commissioner Johnson withdrew her motion on the above resolution.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to amend the agenda to include the following resolution:

A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO REJECT ALL BIDS PURSUANT TO INVITATION TO BID (ITB) NO. 09-0911 AND TO ISSUE A REQUEST FOR PROPOSALS (RFP) FOR THE CONSTRUCTION OF THE SHERBONDY PARK IMPROVEMENT PROJECT PHASE I.

There being no discussion, the motion to amend passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

According to Charter, Commissioner Johnson stated that only the Commission can reject bids; therefore, she would sponsor the resolution.

Mayor Kelley expressed his frustration with having to keep seeing this item come back up and he won't go into details, but he recalled having the discussion in terms of ITB versus RFP. He asked the City Clerk to pull the minutes when he asked the question as to whether the city should have done an RFP because he thought the city should as oppose to an ITB. In moving forward, he said he would hope there are no more delays on this project.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

12. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RECOMMENDING PUBLIC RECORDS REQUEST PROCEDURES. *Sponsored by R.T.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson asked that the sponsor defer the resolution because it was presented before and after having discussion with the City Attorney and City Clerk there's still language she would like to see included.

Commissioner Tydus stated that the public records procedure has been a concern of hers since she was first elected into office. She presented that concern early on which is close to 12 years ago and the subject fell on deaf ears so here she is again with the same problem only this time problems with lawsuits filed against the city for the lack of proper legal procedures. The procedures provided in the legislation are with keeping with the Florida Statutes and are followed by most municipalities. She said she doesn't know what the purpose of deferring would be because every provision and procedure is standard if following the Florida Statutes. She agreed to honor the request of Commissioner Johnson and stated that she didn't have to have her name on the resolution. If the commissioner wants to sponsor the resolution then fine, she just wants the job done.

Attorney Weeks stated that she met with Commissioner Johnson and the City Clerk to discuss the item and it was suppose to make the agenda but it didn't.

Mayor Kelley stated that he spoke to one of the City Attorney's associates and the concern he had was the terminology of recommending versus establishing.

Vice Mayor Taylor withdrew her seconded and Commissioner Johnson withdrew her motion. The above resolution was continued to the next regular commission meeting.

12. NEW ITEMS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE BID FROM INTERNATIONAL SALVAGE, INC. IN RESPONSE TO INVITATION FOR BID (IFB # 09-1123) FOR DEMOLITION OF THE OLD TREATMENT WATER FACILITY; FURTHER AUTHORIZING THE CITY MANAGER TO NEGOTIATE AN AGREEMENT WITH INTERNATIONAL

SALVAGE, INC. FOR SERVICES CONSISTENT WITH THE IFB IN AN AMOUNT NOT TO EXCEED ONE HUNDRED FIFTY THOUSAND DOLLARS ($150,000.00); IN A FORM ACCEPTABLE TO THE CITY ATTORNEY AND TO BE APPROVED BY THE CITY COMMISSION. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Vice Mayor Taylor, seconded by Commissioner Holmes to pass the above resolution.

There being no discussion, the motion passed by a 3-0 vote.

Commissioner Holmes	Yes
Vice Mayor Taylor	Yes
Commissioner Johnson	Out of the room
Commissioner Tydus	Out of the room
Mayor Kelley	Yes

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO COMMENCE WORK TO BE PERFORMED BY THE CITY'S PUBLIC WORKS DEPARTMENT AND EXPEND FUNDS IN AN AMOUNT NOT TO EXCEED TWO HUNDRED THOUSAND DOLLARS ($200,000.00) FOR DRAINAGE AND PARKING LOT IMPROVEMENTS AT SEGAL PARK; PAYABLE FROM ACCOUNT NO. 72-572630. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Out of the room
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

Items listed under the Consent Agenda are viewed to be routine and the recommendation will be enacted by one motion in the form listed below. If discussion is desired, the item(s) will be removed from the Consent Agenda and will be considered separately. All Consent Agenda Resolutions will be read by title.

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN AN AMOUNT NOT TO EXCEED THREE THOUSAND FIVE HUNDRED DOLLARS ($3,500.00) FOR CONSTRUCTION OF A FLOAT AND RELATED COSTS FOR PARTICIPATION IN THE 2010 JUNIOR ORANGE BOWL PARADE, PAYABLE FROM ACCOUNT 12-512480. *Sponsored by C.M.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE EMERGENCY QUOTE FROM HYDRAULIC SALES AND SERVICE, INC., FOR EMERGENCY REPAIRS TO THE VACUUM TRUCK FOR THE CITY OF OPA-LOCKA PUBLIC WORKS DEPARTMENT AT A COST OF TWELVE THOUSAND SIX HUNDRED SEVENTY SIX DOLLARS AND EIGHTY CENTS ($12,676.80); FURTHER AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN THE SAME AMOUNT TO HYDRAULIC SALES AND SERVICE, INC., FOR EMERGENCY REPAIRS TO THE VACUUM TRUCK FOR THE OPA-LOCKA PUBLIC WORKS DEPARTMENT, PAYABLE FROM ACCOUNT 43-538467. *Sponsored by C.M.*

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT TO GREENSPOON MARDER, P.A. FOR LEGAL SERVICES RENDERED TO THE CITY OF OPA-LOCKA IN THE AMOUNT OF EIGHT THOUSAND EIGHT HUNDRED TWENTY TWO DOLLARS AND SEVENTY CENTS ($8,822.70), PAYABLE FROM ACCOUNT NO. 28-514390. *Sponsored by C.M.*

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO MAKE A PAYMENT OF FIVE THOUSAND SIX HUNDRED FIFTY-TWO DOLLARS AND THIRTY-THREE CENTS ($5,652.33) TO JOHNSON, ANSELMO, MURDOCH, BURKE, PIPER & HOCHMAN, P.A., FOR LEGAL SERVICES RENDERED TO THE CITY OF OPA-LOCKA, PAYABLE FROM ACCOUNT NUMBER 28-514390. *Sponsored by C.M.*

10. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PURCHASE LAWN MAINTENANCE EQUIPMENT FOR THE URBAN RANGERS FROM JOSE BLAIR GARDEN SUPPLY, INC. IN THE AMOUNT OF EIGHT THOUSAND ONE HUNDRED THIRTY NINE DOLLARS AND SEVENTY CENTS ($8,139.70), PAYABLE FROM ACCOUNT NO. 41-541640. *Sponsored by C.M.*

The above consent agenda resolutions were read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the consent agenda resolutions.

The motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

Mayor Kelley allowed John Riley to come forward to give his report relating to the Personnel Board.

John Riley, Chairman of the City of Opa-locka Personnel Board came forward and advised that in accordance with Section 183 (3) of the Charter he is to make a report to the Commission after an investigation. He briefly reported on the Personnel Board's investigation regarding the use of the administrative regulation to terminate an employee whether it was correct or not.

He asked the Commission for their assistance in that the rules and the charter of the City of Opa-locka are to be followed. He said this item should have been on the agenda but it wasn't; therefore, he would have it placed on the next agenda to address this issue.

A. CITY MANAGER'S REPORT:

Manager Finnie advised the Commission that he would set up a meeting with staff and the director of the Parks & Recreation Department to discuss programming at Ingram Park as oppose to Sherbondy Park. Also, he would attempt to identify a plan to enhance raising capital for the cheerleading program.

In terms of the issue in the Triangle, he reported that the city has its CET program in that area and he would make sure those residents in that area are included. The bus route issue would be interesting; however, he would send a letter to Miami-Dade Transit to see what options the city may have. The Code Red program would be activated to get information out in the community.

Mayor Kelley directed the City Manager, after meeting with Parks & Recreation, to provide the Commission with a report. In addition, he suggested that a forum is held for the parents and citizens as to the plans for that department going forward. With regards to the concern about a complaint not being addressed, he directed the City Manager to provide the Commission with a memorandum on what that complaint was and make sure it is addressed as well.

As a part of her Action List items from the previous commission meeting, Vice Mayor Taylor stated that the City Manager addressed the speed bumps on Burlington near Nathan B. Young Elementary; but he did not address her request for the City Manager and City Attorney to bring back a recommendation to the Commission on centralizing all contracts and who would be the contract manager.

Attorney Weeks advised that the issue with the contracts would require an ordinance change because the city's Code of Ordinances currently provides that each city department has a contract manager.

Manager Finnie stated that at the next regular meeting he would bring back a memorandum outlining how the city monitors its contracts. The city currently has one person that is monitoring all contracts for all departments.

As it relates to speed bumps, Mayor Kelley stated that there was a recommendation from staff and staff had said at that time that the speed bumps were not a good idea because everybody wants them. The city must come up with some type of process on doing that because there was concern from the county with the city's roadway becoming a speed bump. He directed the City Manager, if he had seen that correspondence or legislation, to get back to the Commission with a report.

Commissioner Johnson thanked staff for the waste dispensers near the bus stops but she wants to make sure the garbage from those dispensers is being picked up on a regular basis. She also thanked the IT department for utilizing Code Red to inform the citizens near Ingram Park of the event being held on Saturday, December 12, 2009.

In accordance to Section 31 of the City of Opa-locka Charter, she said the city could not create a department unless it's by ordinance (i.e. Community Development, Building & License); therefore, she directed the City Manager to bring something back to address this issue.

She continued by saying that she would like the City Manager to have staff include bingo on the seniors calendar on the third Friday. Also, she wants to see the Opa-Steppers on the calendar every Friday from 6:00 p.m. – 8:00 p.m. and she needs someone in charge of that program who is consistent.

She further stated that she was told the city's sweeper is not operational at this point; but the city could lease a street sweeper because the main corridors are filthy and must be addressed before New Years.

Commissioner Johnson directed the City Manager to send a letter to Miami-Dade County in terms of the closing of the Opa-locka branch library on Fridays because she received some complaints.

She stated that she didn't know whether NW 27th Avenue was a part of the agreement but she is aware that the City Manager mentioned about a $300,000.00 grant from Miami-Dade County to clean State Road 9.

Manager Finnie apologized for misspeaking because the county allocated $300,000.00 for State Road 9 but they didn't give the city the $300,000.00.

Commissioner Johnson suggested that whoever is cleaning State Road 9, they must get the entire area cleaned to include NW 27th Avenue.

She continued by saying that the Commission received an inquiry about the irrigation system on public property not working properly and this must be addressed.

She further inquired about property near the airport because she had seen Miami-Dade County vehicles and it looked like they were cutting down trees.

Manager Finnie stated that the property in question is across from Aramark and that is privately owned property which is a part of Miami-Dade County's clean up.

Commissioner Johnson stated that she had not heard mention about the traditional MLK parade in January and directed the City Manager to follow up and provide the Commission with information on that event.

Commissioner Holmes stated that he attended one of the meetings in the Parks & Recreation Department and that meeting was very productive and positive. In listening to the concerns under citizens' forum, the majority of parents spoke very highly of Mr. Starex Smith although there were some who were not satisfied. He directed the City Manager to listen to the parents because they are making statements about certain issues, especially about the lack of activities at Ingram Park. He directed the City Manager to look into this matter and make sure there are activities at Ingram Park and bring back a report with the findings.

He continued by directing the City Manager to look in the issue with the noise from the airplanes.

As it relates to the job creation program passed, Mayor Kelley said he was hopeful that the city is working on the specifics to get that program going. Not only would it help beautify and take care of some of the challenged areas, but it would also provide

employment for citizens. He said he would look to have a draft within the next week for the Commission to review.

Manager Finnie said he would have the draft available to the Commission by the end of the week.

B. ACCOUNTS PAYABLE:

Mayor Kelley stated that he sent a memorandum to the City Manager and Dr. Orji regarding spending; but the city's budgeting and spending is on a quarterly cycle type basis and in this case October, November and December is the first quarter. He said he wants to make sure that the city is looking at its spending, inclusive of overtime, and what they are paying out. The city must be fiscally prudent and responsible and continue staying diligent with the spending. He said when the first quarter comes out he would be interested in seeing what the percentages are.

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that he would definitely make sure the city is monitoring the budget and provide the Commission with a report. He advised that included in their packet is the listing of revenues and expenditures audit trail and cash requirements for the next payout.

He reported that the city is paying all of its bills as they become due.

16. OFFICIAL BOARD REPORTS:

Charter Review Board – minutes of 09/03/2009
Planning Council – minutes of 11/10/2009
Personnel Board – Investigative Report, Final Order

17. CITY ATTORNEY'S REPORT:

Attorney Weeks announced that this was her last meeting as City Attorney for the City of Opa-locka and she had enjoyed working very much for and with each and everyone. She said she tendered her resignation earlier that day which included a single spaced four page list of accomplishments. She thanked the Commission for the opportunity and in addition to added value, they have learned a lot while being in Opa-locka. She hoped to maintain relationship with the Commission and said she was available to assist during the transition process.

In terms of the present litigations the city is going through, Vice Mayor Taylor asked about the transition.

Mayor Kelley advised that he was planning on calling a special meeting and at that time the Commission could deal with an interim City Attorney and as a part of that, if the need arises, should there be pending items, Attorney Weeks has already offered her assistance in the transition process.